

she may enjoy the same for her life, the Court will settle it with a *clause against anticipation* (d).

[If personal estate be bequeathed for the benefit of a *feme sole* "to be paid upon her marriage and to be settled upon her by her settlement," the Court will upon her marriage settle it on the usual trusts for her and *her children* (e).]

25. **Post-nuptial settlements.**—Executory trusts in *post-nuptial* settlements, whether voluntary or founded on a valuable consideration, will be construed in the same manner as executory trusts in wills (f).

26. **Of powers in executory trusts.**—We shall conclude this branch of our subject with a few observations upon the powers to be introduced in the execution of settlements, where the trust is executory.

Powers not inserted without a direction.—If the testator or contracting parties give no directions as to the insertion of powers, the Court cannot, upon the ground of implied intention, order a power to be introduced (g), except [*127] * possibly a power of *leasing*, which differs from all other powers in being an almost necessary adjunct for the preservation of the estate itself (a).

"Usual powers."—If the authority be expressed in general terms, as "to insert all *usual* powers," the trustees

(d) *In re Dunnill's Trust*, 6 I. R. Eq. 322; and see *Turner v. Sargent*, 17 Beav. 515; *Stanley v. Jackman*, 23 Beav. 450.

(e) *Duckett v. Thompson*, 11 L. R. Ir. 424.]

(f) *Rochfort v. Fitzmaurice*, 1 Conn. & Laws, 158.

(g) *Wheate v. Hall*, 17 Ves. 80, see 85; and see *Brewster v. Angell*, 1 J. & W. 628. In a recent case, however, where a will had simply directed a settlement without authorizing any powers expressly, the M. R. held a tacit intention to be implied that powers of leasing, sale and exchange, and appointment of new trustees, and of signing receipts, with provisions for maintenance, education, and ad-

vancement, should be inserted, *Turner v. Sargent*, 17 Beav. 515. [And in a subsequent case, *Fry, J.*, approved of and followed the decision in *Turner v. Sargent*, and said that the case of *Wheate v. Hall* did not appear to him to conflict with that view, that there the direction was that the trustees should secure the property in a particular manner, which was so fully detailed in the will that the Court thought it could not, although the trusts were in terms executory, insert a power of sale. *Wise v. Piper*, 13 Ch. D. 848, 853.] And see *Scott v. Steward*, 27 Beav. 367; *Charlton v. Rendall*, 11 Hare, 296.

(a) See *Fearne's P. W. 310*; *Woolmore v. Burrows*, 1 Sim. 518.